

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

MARLON BAYNES,

Plaintiff, **SUMMONS TO THE
COMPLAINT**

-against-

Index No. _____/2015

THE CITY OF NEW YORK; P.O. MATEUSZ TKACZUK,
SHIELD #25963; P.O. MICHAEL ALFANO, SHIELD
#06172; the individual defendants sued individually and in
their official capacity,

Index Purchased: 3/2/2015

Basis of Venue is Occurrence of
Incident – West 4th Street and
Cornelia Street, New York, NY

Defendants.

----- X

To: The Above-Named Defendants

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
March 2, 2015

KUSHNER LAW GROUP, P.L.L.C.

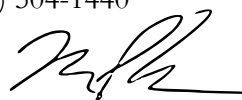
Attorney for Plaintiff

16 Court St., Suite 2901

Brooklyn, New York 11241

(718) 504-1440

By:

_____
Michael P. Kushner, Esq.

Defendants' addresses: City of New York, 100 Church Street, New York, New York 10007;
Defendants Tkaczuk, Shield #25963; P.O. Michael Alfano, Shield #06172; c/o NYPD
Headquarters, One Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

MARLON BAYNES,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. MATEUSZ TKACZUK,
SHIELD #25963; P.O. MICHAEL ALFANO, SHIELD
#06172; the individual defendants sued individually and in
their official capacity,

Defendants.

COMPLAINT

Index: _____/15

Index No. Purchased: 3/2/2015

Basis of Venue: Occurrence of
Incident – West 4th Street and
Cornelia Street, New York, NY

----- X

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to the Civil Rights Act of 1871, 42 U.S.C. §§ 1983 and 1988 for the defendants' commissions of acts under color of law in violation of plaintiff's rights under the Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States.

2. Mr. Baynes' complaint stems from incident(s) that began on or about March 2, 2012 and continued until on or about December 12, 2012. During the incident(s), Mr. Baynes was subjected to false arrest, unlawful search and seizure, excessive force, malicious prosecution, and a denial of his constitutional, civil, and common law rights.

3. This complaint, arising from these outrageous and unlawful acts, seeks compensatory and punitive damages, costs, disbursements, and attorneys' fees pursuant to applicable federal civil rights law.

JURISDICTION & VENUE

4. This action arises under the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §§ 1983 and 1988.

5. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343, and 1367.

6. Venue is proper pursuant to 28 U.S.C. § 1391(b) in that, *inter alia*, the events giving rise to the claim occurred in the Southern District of New York.

JURY DEMAND

7. The plaintiff demands a trial by jury on each and every one of his claims as pled herein.

PARTIES

8. Plaintiff Marlon Baynes is a citizen of the United States and a resident of Kings County.

9. Defendant THE CITY OF NEW YORK (the “City”) is a municipal corporation organized under the laws of the State of New York.

10. The New York City Police Department (the “NYPD”) is the department of the City responsible for, among other functions, arresting persons for offenses and maintaining custody over such persons prior to their initial appearance in court. At all times relevant hereto, the NYPD, together with the City, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the NYPD, together with the City, was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obeyed the Constitution and laws of the United States and the State of New York.

11. At all relevant times herein, defendant Mateusz Tkaczuk was employed as a police officer by the NYPD and was acting in the capacity of agent, servant, and employee of the City. At all relevant times herein, defendant Mateusz Tkaczuk held the rank of Police Officer and was assigned to the 6th Precinct. At all relevant times herein, defendant Mateusz Tkaczuk's shield number was 25963.

12. At all relevant times herein, defendant Michael Alfano was employed as a police officer by the NYPD and was acting in the capacity of agent, servant, and employee of the City. At all relevant times herein, defendant Michael Alfano held the rank of Police Officer and was assigned to the 6th Precinct. At all relevant times herein, defendant Michael Alfano's shield number was 6172.

13. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

14. On or about March 2, 2012, at approximately 1:50 a.m., plaintiff Marlon Baynes was lawfully at and in the vicinity of West 4th Street and Cornelia Street, in the County and State of New York.

15. Upon information and belief, on March 2, 2012, Defendants Tkaczuk and Alfano were part of a police team that was working from the 6th precinct, located in New York, New York.

16. At that time and place and without any probable cause to do so, one of the defendant officers came up to Mr. Baynes and detained him. Mr. Baynes was not free to disregard the defendant officer's questioning or leave the scene.

17. Thereafter, Mr. Baynes was subjected to an unlawful search and seizure when the defendant officers, without either consent, an arrest warrant, a valid search warrant, probable cause, or reasonable suspicion that plaintiff (or any third party) had committed a crime detained plaintiff, searched him, and placed excessively tight handcuffs about his wrists.

18. Each of the defendant officers were present during, and participated in, Mr. Baynes' arrest and detention.

19. Mr. Baynes complained to the defendant police officers that the handcuffs were excessively tight and that he needed them to be loosened. The defendant police officers ignored Mr. Baynes' pleas to loosen the cuffs.

20. Following a detention of approximately 1 hour inside of an unmarked police van, Mr. Baynes was taken to the 6th Precinct, located in New York, New York for arrest processing.

21. Upon information and belief, while Mr. Baynes was awaiting arraignment, the officers who arrested him, acting in concert, and pursuant to a conspiracy, falsely and maliciously told the New York County District Attorney's Office that Mr. Baynes had committed various crimes, and based on the officers' false allegations, the New York County District Attorney's Office prosecuted Mr. Baynes in Court under Criminal Docket #2012NY017743.

22. Mr. Baynes was held in custody in lieu of posting bail for five days until on or about March 7, 2015 when he was released pursuant to Criminal Procedure Law § 170.70.

23. Thereafter, all charges were dismissed and sealed against Mr. Baynes on December 12, 2012.

24. Mr. Baynes was required to appear in Court for seven appearances to defend against the false allegations.

25. The above-stated malicious prosecution was initiated without probable cause to believe that the prosecution would be successful and without regard to Mr. Baynes' innocence.

26. The above-stated malicious prosecution was initiated with malice because it was not based upon probable cause.

27. The above-stated malicious prosecution terminated in Mr. Baynes' favor on December 12, 2012 when the charges were dismissed and sealed against him.

28. The above-stated malicious prosecution caused a significant post-arraignment liberty restraint on Mr. Baynes, namely the 5 days in custody and the 7 court appearances he was required to make in order to defend against the false allegations.

FIRST CAUSE OF ACTION

(42 U.S.C. § 1983 AGAINST ALL DEFENDANTS)

29. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

30. By reason of the foregoing, and by falsely arresting Mr. Baynes, unlawfully searching and seizing him, exerting excessive force against him, maliciously prosecuting him, and/or exhibiting deliberate indifference to Mr. Baynes' rights by not acting on information which indicated that unconstitutional acts were occurring, the individual defendants deprived Mr. Baynes of rights, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the Fourth, Eighth, and Fourteenth Amendments of the United States Constitution.

31. The individual defendants acted at all relevant times hereto willfully, wantonly, maliciously, and/or with such reckless disregard of consequences as to reveal a conscious indifference to the clear risk of serious injury and pain and suffering to Mr. Baynes that shocks the

conscience. As a direct and proximate result of these violations of Mr. Baynes' constitutional rights, he suffered the damages hereinbefore alleged.

32. The Individual Defendants acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as NYPD officers, agents, employees, and/or contracted personnel. Said acts by defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. Said defendants acted willfully, knowingly, and with the specific intent to deprive Mr. Baynes of his constitutional rights secured by 42 U.S.C. § 1983, and by the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution.

33. Defendant City, through NYPD, through its officers and employees, acting under the pretense and color of law, permitted, tolerated, and were deliberately indifferent to a pattern and a practice of abuse and neglect by its officers, employees, agents, and contracted personnel at the time of Mr. Baynes' mistreatment. This widespread tolerance of abuse and neglect constituted municipal and corporate policy, practice, and custom, and was a proximate cause of Mr. Baynes' mistreatment, and plaintiff's resultant damages, hereinbefore alleged.

34. At all times material to this complaint, the defendant City, acting through the NYPD and the individual officer defendants, had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

35. At all times material to this complaint, the defendant City, acting through the NYPD and the individual defendants, had *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise or discipline employees and police officers, and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise, or discipline said defendants.

36. By permitting, tolerating, and sanctioning a persistent and widespread policy, practice, and custom pursuant to which Mr. Baynes was abused and neglected, the City has deprived Mr. Baynes of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983 and the Fourth, Eighth, and Fourteenth Amendments to the United States Constitution.

37. As a direct and proximate result of the misconduct and abuses of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, disbursements, and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: Brooklyn, New York
March 2, 2015



Michael P. Kushner, Esq.
KUSHNER LAW GROUP, P.L.L.C.
16 Court Street, Suite 2901
Brooklyn, New York 11241
(718) 504-1440
mk@kushlawgroup.com